

9:00 A.M.

Calendar Lines # 1-2

Case Name Maribel Duran Carrillo et al vs Universal Protection Service, LP et al

Case No. 24CV428722

Demurrer (Line # 1) and Motion to Strike (Line #2)

Before the court are two motions filed by Defendants The Irvine Company and Tesoro Crescent Village (collectively “Defendants”): (1) Demurrer (Line # 1); and (2) Motion to Strike (Line # 2) to Plaintiffs’ Third Amended Complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Court addresses the Demurrer (Line #1) first and then the Motion to Strike (Line # 2).

DEMURRER (LINE # 1)

I. BACKGROUND

This case stems from a fatal shooting that occurred on June 13, 2026, Decedent Erica Pantoja and Marco Carral-Duran (collectively “Decedents”) were shot and killed by Ms. Pantoja’s estranged ex-spouse, Salvador Pantoja. Decedent Erica Pantoja’s six minor children who are plaintiffs in this matter were present at the time of the incident. Plaintiffs seeks damages against Defendants The Irvine Company and Tesoro Crescent Village, and Universal Protection Service, LP.

On December 8, 2025, Plaintiffs filed a Third Amended Complaint (“TAC”) following a prior court order authorized by the Honorable Shella Deen dated November 14, 2025 sustaining Defendants’ demurrer to Plaintiff’s Second Cause of Action (“SAC”) with twenty days leave to amend. Plaintiff alleges new causes of actions following the three prior demurrers. In its TAC, Plaintiff alleges five causes of actions: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty.

On January 30, 2026, Defendants filed this demurrer (Line #1) and motion to strike (Line #2). The motions are accompanied by a proof of electronic service on Plaintiffs’ counsel on that same day.

On June 26, 2026, an ex parte application to continue the hearing on the demurrer was denied.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant notice of demurrer and memorandum of points and authorities (totaling 30 pages); Declaration of James C. Truxaw in support of the demurrer and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice (totaling 125 pages); proofs of services; and the pleadings.

II. PROCEEDURAL REQUIREMENTS

A. MEET AND CONFER

Code of Civil Procedure section 430.41 requires parties to meet and confer prior to filing the demurrer. On January 30, 2026, Defendants’ counsel attempted to email Plaintiffs’ counsel on January 22, 2026 (Declaration of Truxaw ¶ 5; Exhibit B), and attempted to call Plaintiffs’ counsel and left a voice message on January 23 and 26, 2026. (*Id.*, ¶6). Thus, the court finds Defendants complied with Code of Civil Procedure section 430.41 and now considers the demurrer on its merit.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Defendants request that the court takes judicial notice of six exhibits: (1) Exhibit A, is Plaintiff's original Complaint; (2) Exhibit B is the Honorable Shella Deen's October 11, 2024 Order sustaining Defendant's Demurrer to Plaintiff's Complaint; (3) Exhibit C is Plaintiff's First Amended Complaint; (4) Exhibit D is the Honorable Shella Deen's April 3, 2025 Order sustain Defendant's Demurrer to Plaintiff's First Mended Complaint; (5) Exhibit E, is Plaintiff's Second Amended Complaint; and (6) Exhibit F, is the Honorable Shella Deen's November 14, 2025 Demurrer to Plaintiff's SAC.

The request for judicial notice is unopposed. The Court GRANTS the defendant's request judicial notice to the extent that Exhibits A - F as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). "A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152).

When a demurrer is sustained with leave to amend, "[t]he plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (*Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023; see also *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015 [plaintiff may add a new cause of action when it "directly responds to the court's reason for sustaining the earlier demurrer"]).

IV. ANALYSIS

Defendants demurrer to Plaintiff's TAC.

On November 6, 2025, the Honorable Shella Deen heard the Defendants demurrer as to Plaintiff's Second Amended Complaint ("SAC") and took the matter under submission. On November 14, 2025, Judge Deen issued an Order noting that the plaintiffs have filed three iterations of the Complaint and failed to successfully allege their claims for negligence. However, the court allowed the plaintiff twenty days' leave to amend to sufficiently state a claim for negligence based on third party acts of crime and noted that this was the plaintiff's final opportunity. (Order, November 14, 2025).

On December 8, 2025, Plaintiffs filed its TAC alleging new causes of actions, including: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty. A plaintiff is precluded from amending new causes of actions when a demurrer is sustained with leave to amend. (*Harris v. Wachovia Mortg., FSB, supra*, 185 Cal.App.4th 1018).

Defendants argue that the Plaintiff's TAC fails state facts sufficient to constitute a cause of action under Code of Civil Procedure section 430.10(e), because there is no facts to support an actionable duty of care or breach, specifically Defendants' obligation to prevent third-party criminal conduct on their property. (Demurrer, p. 5-8). Defendants also avers that there is insufficient facts to establish causation. (*Id.*). Finally, Defendants state that Plaintiffs are barred under workers' compensation exclusivity and the *Privette* doctrine. (*Id.*).

Here, the Court notes that this is the fourth demurrer filed by the Defendants in this matter. Since Plaintiff filed its original Complaint on January 5, 2024, there have been three demurrers and three amended Complaints filed. From October 2024 to November 2025, the court has sustained the demurrers with leave to amend. Thus, the court has liberally construed leave to amend to allow for the plaintiffs the reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348). After the third demurrer, on November 11, 2025, Judge Deen expressly noted that this was the final leave to amend. Plaintiffs has not shown a reasonable probability of amending the complaint to cure the deficiencies discussed above.

V. CONCLUSION

Based on the foregoing, the demurrer being unopposed, the demurrer to the first and second causes of actions are SUSTAINED WITHOUT LEAVE TO AMEND. The Court will prepare the formal Order.

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MOTION TO STRIKE (LINE # 2)

I. BACKGROUND

This case stems from a fatal shooting that occurred on June 13, 2026, Decedent Erica Pantoja and Marco Carral-Duran (collectively "Decedents") were shot and killed by Ms. Pantoja's estranged ex-spouse, Salvador Pantoja. Decedent Erica Pantoja's six minor children who are plaintiffs in this matter were present at the time of the incident. Plaintiffs allege that Erica Pantoja was working as a security guard at the time of the incident and seeks damages against Defendants The Irvine Company and Tesoro Crescent Village, and Universal Protection Service, LP.

On January 30, 2026, Defendants filed this motion to strike (Line #2) and demurrer (Line # 1). The motions are accompanied by a proof of electronic service on Plaintiffs' counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant notice of motion to strike and memorandum of points and authorities (totaling 9 pages); Declaration of James C. Truxaw in support of the motion and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice and attached Exhibit A (totaling 23 pages); proofs of services; and the pleadings.

II. PROCEDURAL REQUIREMENTS

A. MEET AND CONFER

On January 30, 2026, Defendants' counsel attempted to email Plaintiffs' counsel on January 22, 2026 (Declaration

of Truxaw ¶ 5; Exhibit B), and attempted to call Plaintiffs' counsel and left a voice message on January 23 and 26, 2026. (*Id.*, ¶6). Thus, the court finds Defendants complied with the meet and confer requirements.

B. REQUEST FOR JUDICIAL NOTICE

Under Evidence Code section 452(c)-(d), the court may take judicial notice of court records and actions of the state. Here, Defendants request that the court takes judicial notice of Exhibit A, which is the Honorable Shella Deen's November 14, 2025 Order sustain the Defendants' demurrer to Plaintiff's SAC.

The request for judicial notice is unopposed. The Court GRANTS the defendant's request judicial notice to the extent that Exhibit A as identified above. However, the Court does not take judicial notice of the truth of assertions within the court records. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375).

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 436(a), the court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. Under section 436(b), the court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (*Id.*, § 436). The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Id.* § 437). "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768). A motion to strike can be used where the complaint or other pleading has not been drawn or filed in conformity with applicable rules or court orders. (Code Civ. Proc., § 436(b)). This provision is for "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed." (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528).

IV. ANALYSIS

Defendants move to strike the third cause of action, Negligent Undertaking; fourth cause of action, Negligent Misrepresentation and Concealment; and fifth cause of action, Breach of Workplace Safety Duty alleged in Plaintiffs' TAC.

On November 6, 2025, the Honorable Shella Deen heard the Defendants demurrer as to Plaintiff's Second Amended Complaint ("SAC") and took the matter under submission. Plaintiff's SAC filed on April 23, 2025 and alleged two causes of action: (1) negligence (wrongful death and survival action) and (2) negligent infliction of emotional distress (bystander theory). On November 14, 2025, Judge Deen issued an Order noting that the plaintiffs have filed three iterations of the Complaint and failed to successfully allege their claims for negligence. However, the court allowed the plaintiff twenty days' leave to amend to sufficiently state a claim for negligence based on third party acts of crime and noted that this was the plaintiff's final opportunity. (Order, November 14, 2025).

The Order provides a final opportunity to amend the two existing theories alleged in Plaintiff's SAC for (1) negligence (wrongful death and survival action) and (2) negligent infliction of emotional distress (bystander theory). However, on December 8, 2025, Plaintiffs filed its TAC alleging new causes of actions, including: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty. A plaintiff is precluded from amending new causes of actions when a demurrer is sustained with leave to amend. (*Harris v. Wachovia Mortg., FSB, supra*, 185 Cal.App.4th 1018). The Court finds that the plaintiff is barred from adding new causes of actions.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

V. CONCLUSION

Based on the foregoing, the motion being unopposed, the motion to strike the third cause of action, Negligent Undertaking; fourth cause of action, Negligent Misrepresentation and Concealment; and fifth cause of action, Breach of Workplace Safety Duty alleged in Plaintiffs' TAC is GRANTED.

The Court will prepare the formal Order.

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Calendar Line # 3
Case Name Joanna Loresto vs Ford Motor Company et al
Case No. 24CV447321
Motion for Summary Judgment/Adjudication Before the court is Ford Motor Company’s motion for summary judgment/ adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> In this action, plaintiff Joanna Loresto (“Plaintiff”) alleges, among other things, defendant Ford Motor Company (“Ford”) and others violated the Song-Beverly Consumer Warranty Act (“Act”) with regard to a 2022 Ford Maverick vehicle (“Vehicle”). In particular, Plaintiff alleges the Vehicle suffered various defects, including a transmission defect, engine defect, and electrical defect, among others. (Complaint, ¶12). On September 13, 2024, Plaintiff filed a complaint against defendant Ford and others asserting causes of action for: (1) Violation of subdivision (d) of Civil Code section 1793.2 (2) Violation of subdivision (b) of Civil Code section 1793.2 (3) Violation of subdivision (a)(3) of Civil Code section 1793.2 (4) Breach of the Implied Warranty of Merchantability (5) Negligent Repair [against defendant All Star Ford only] On October 25, 2024, defendant All Star Ford filed a motion to compel arbitration and to stay action. On February 13, 2025, Plaintiff filed a request for dismissal of defendant All Star Ford. On February 11, 2026, defendant Ford filed the motion now before the court, a motion for summary judgment/ adjudication of Plaintiff’s complaint. The Court notes that Defendant Ford has not yet filed an Answer. A defendant “may move for summary judgment even if they have not yet filed an answer.” (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2025) ¶10:62). <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, subd. (a)(1): “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., §437c, subd. (a)(1)). “A defendant or cross-defendant has met that party’s burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., §437c, subd. (p)(2)). “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c)). <u>III. ANALYSIS</u> A. FIRST CAUSE OF ACTION As to the first cause of action of Plaintiff’s complaint, defendant Ford acknowledges: